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San Francisco sues major companies over ultra-processed foods

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Author: Bob Egelko, Staff Writer | Section: Politics | 719 Words
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Ultra-processed foods, such as breakfast cereals, candies, chips, sodas and energy drinks, are addictive products that are harming Americans' health and shortening their lives, the city of San Francisco charged in a lawsuit last Tuesday against major food and drink companies.

"These companies know their products are harming people, but they continue to design, market and profit off them," City Attorney David Chiu said at a news conference announcing the suit, which he called the first of its kind in the nation. Defendants include Kraft Heinz, Kellogg, Post, General Mills, Pepsico and other manufacturers.

The suit, filed in Superior Court in San Francisco, seeks court orders requiring the companies to end "deceptive marketing," take steps to remedy the effects of their previous advertising and pay unspecified sums to San Francisco for costs such as health care and providing additional food to needy residents.

It does not seek to ban food products, actions that can be taken only by state and federal governments. But a new state law, AB1264 by Assembly Member Jesse Gabriel, D-Encino (Los Angeles County), signed by Gov. Gavin Newsom in October and also the first in the nation, will require schools in the state to start removing "particularly harmful" ultra-processed foods from school lunch menus in 2029 and will ban schools from serving those foods in 2035.

Ultra-processed foods are commercially produced with ingredients not found in most home kitchens, with high contents of sugar, salt or both, saturated fats, additives such as thickeners and emulsifiers, and generally few or no nutrients. According to the lawsuit, 70% of the nation's foods are now ultra-processed.

In the 1960s, the suit said, tobacco companies purchased some major food manufacturers — for example, R.J. Reynolds, now Mondelez, acquired the makers of Nabisco, Lorna Doone, Oreo, Ritz and Fig Newtons — and saturated the television market with ads appealing to children.

"Tobacco has hijacked our food system for decades," Diandra Debrosse, an attorney whose law firm is assisting the city in the suit, said at the news conference. "The techniques they developed for selling cigarettes, they're using … to sell UPF to children."

The lawsuit, signed by Chiu, said the products are "designed to be cheap, colorful, flavorful and addictive."

"American children get two-thirds of their daily energy from UPF (ultra-processed foods)," the suit said. "But the explosion and dramatic increase in availability of UPF has coincided with a dramatic increase in the incidence of obesity, diabetes, heart disease, cancers" and other serious illnesses, the suit said.

That was disputed by a trade organization for the food manufacturers.

"Attempting to classify foods as unhealthy simply because they are processed, or demonizing food by ignoring its full nutrient content, misleads consumers and exacerbates health disparities," Sarah Gallo, a vice president of the Consumer Brands Association, said in a statement.

She said there was "no agreed-upon scientific definition of ultra-processed foods," a view also expressed by some researchers.

Yale University's School of Public Health, for example, said in a September report that the term does not have a

"clear definition," while adding that "multiple studies" have shown that consuming large amounts of heavily processed foods increases the risks of diabetes, cancer and other illnesses. The U.S. Food and Drug Administration said in July that it was seeking data "to help develop a uniform definition of ultra-processed foods."

Gallo said food manufacturers "adhere to the rigorous evidence-based safety standards established by the FDA to deliver safe, affordable and convenient products that consumers depend on every day. Americans deserve facts based on sound science in order to make the best choices for their health."

But the suit said Michael Mudd, vice president of the company that later became Kraft Heinz, told other food executives in 1999 that ultra-processed foods were causing 300,000 premature deaths in the U.S. each year and costing Americans as much as $100 billion annually in health care and other expenses. He said the executives were unmoved.

The products also affect consumers' mental health, said Kimberly Green, an associate clinical professor at UC San Francisco.

"I fight this every day in my household and I am losing," she said at the news conference.

Chiu recalled that when he was a child, his mother said he could have Pringles potato chips, one of his favorites, if he agreed to take swimming lessons. He did.

"I love my Pringles," he told reporters, "but they are designed to be highly addictive."

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